

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JAMIE SMITH,

Petitioner,

AFFIRMATION

INDEX NO:

-against-

CITY OF NEW YORK,
POLICE OFFICER JANNY CARRASQUILLO (shield # 1103) and
UNDERCOVER POLICE OFFICER (shield # 348),

Respondent.
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ELLIOT S. KAY, ESQ., an attorney duly licensed to practice law before the Courts of the State of New York, hereby affirms the following to be true under penalty of perjury:

1. I am the attorney for Petitioner JAMIE SMITH and as such I am fully familiar with the facts and circumstances surrounding the above captioned action. The basis for my knowledge is derived from those files maintained by this office in connection with same.

2. I am respectfully submitting this Affirmation in Support of the instant Petition pursuant to General Municipal Law § 50-e(5) therein granting leave to Petitioner to serve a Late Notice of Claim on the Respondents, CITY OF NEW YORK, POLICE OFFICER JANNY CARRASQUILLO (shield # 1103) and UNDERCOVER POLICE OFFICER (shield # 348), which will include causes of action for False Arrest/False Imprisonment, Assault, Battery and Malicious Prosecution.

3. No prior application for the relief sought herein has been made.

4. **Petitioner's claim for malicious prosecution is timely.** However, his claims for false arrest/false imprisonment, assault and battery are not timely, as the proposed Notice of

Claim was served upon Respondents approximately sixteen (16) days late. (**Exhibit “A”**)

5. I make this Petition upon information and belief. The sources of my information are the Criminal Court Complaint, Certificate of Disposition and speaking with the Petitioner.

6. On or about December 7, 2018, at approximately 5:00 p.m., in the vicinity of 2355 Grand Concourse in Bronx County, New York City police officers, including POLICE OFFICER JANNY CARRASQUILLO (shield # 1103) and UNDERCOVER POLICE OFFICER (shield # 348), arrested Petitioner for Criminal Sale of Marijuana in the Fourth Degree and related charges under docket number 2018BX039730. (**Exhibit “B”**) Petitioner was released from custody on or about December 9, 2018. On March 12, 2019, the case against Petitioner was dismissed and sealed. (**Exhibit “C”**)

7. On March 25, 2019, Petitioner filed a Notice of Claim with the City of New York, alleging causes of action for False Arrest/False Imprisonment, Assault, Battery and Malicious Prosecution. (**Exhibit “A”**) Given that Petitioner was released from custody on or about December 9, 2018, his time to file a Notice of Claim for the False Arrest/False Imprisonment cause of action expired on or about March 9, 2019. His time to file a Notice of Claim for Assault and Battery expired on or about March 7, 2019. As previously stated, Petitioner filed a Notice of Claim on March 25, 2019. (**Exhibit “A”**) Thus, Petitioner’s proposed Notice of Claim was filed approximately sixteen (16) days late.

8. It is well settled that the Court may, in its discretion, extend the time to serve a notice of claim. See, Matter of Lodati v. City of New York 303 A.D.2d 406 (2nd Dept. 2003); Matter of Allen, 268 A.D.2d. 520 (2nd Dept. 2000). In determining whether to grant an application for leave to file a late notice claim, “the key factors which the Supreme Court must consider are whether the movant demonstrated a reasonable excuse for the failure to timely file a

notice of claim, whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or within a reasonable time thereafter, and whether the delay would substantially prejudice the municipality in its defense.” Burgess v. County of Suffolk, 56 A.D.3d 769 (2nd Dept 2008). Neither the presence nor the absence of any one factor is determinative. See, Matter of Dell’Italia v. Long Island Corp., 31 A.D.3d 758 (2nd Dept. 2006). In accord with the General Municipal Law, the Court must give particular consideration to whether municipality acquired actual notice of the essential facts of the claim within 90 days after the claims arose *or within a reasonable time thereafter*. See, Munro v. Ossining Union Free School District, 55 A.D.3d 697 (2nd Dept., 2008).

**RESPONDENTS HAD NOTICE AND THE DELAY DOES NOT SUBSTANTIALLY
PREJUDICE RESPONDENTS**

9. It is well accepted law that for claims of false arrest, false imprisonment and malicious prosecution, where the police department conducts an extensive investigation in which the District Attorney’s office joins and participates, knowledge of the essential facts constituting the claims can be imputed to the City of New York within the statutory period. Hence, the City cannot claim prejudice by any delay. Grullon v. City of New York, 222 A.D.2d 257, 635 N.Y.S.2d 24 (1st Dept., 1995); Nunez v. City of New York, 307 A.D.2d 218, 762 N.Y.S.2d 384 (1st Dept., 2003); Phillipe v. City of New York, 8 Misc.3d 1016A, 803 N.Y.S.2d 20 (Sup. Ct., NY Co., Ling-Cohan, J., 2005).

10. Herein, Respondents had actual knowledge of the incident giving rise to the instant proceeding. The CITY OF NEW YORK, its agents, servants and employees, arrested, imprisoned and prosecuted Petitioner. In fact, Respondent POLICE OFFICER JANNY CARRASQUILLO (shield # 1103) signed the Criminal Complaint the day after Petitioner was arrested. **(Exhibit “B”)** Thus, Respondents had actual knowledge of the incident giving rise to the

instant proceeding.

11. As the First Department stated in Grullon v. City of New York, supra, in cases where the delay "...was not a lengthy one" and where the City of New York, by the police department and District Attorney's office, were actively involved in the investigation of the criminal charges on which the civil claims are based, there is simply no prejudice and no valid reason to deny Claimant the right to timely file a Notice of Claim on all the stated causes of action.

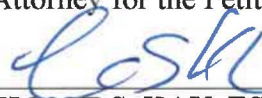
12. In conclusion, the delay of approximately sixteen (16) days as to Petitioner's claims for false arrest/false imprisonment, assault and battery, has not impeded any investigation or inquiry by Respondents that will rise to substantial prejudice.

13. Based upon the foregoing, it is respectfully requested that the Petitioner be granted leave to file the proposed late notice of claim annexed hereto.

Dated: Bronx, NY
July 10th, 2019

Law Offices of Elliot S. Kay
Attorney for the Petitioner

By: _____


ELLIOT S. KAY, ESQ.
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251